

**SUBSTITUTE FOR
HOUSE BILL NO. 5430**

A bill to amend 1978 PA 368, entitled
"Public health code,"
by amending section 12501 (MCL 333.12501), as amended by 2004 PA
408, and by adding section 12510a.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 12501. (1) As used in sections 12501 to 12516:

2 (a) "Campground" means a parcel or tract of land under the
3 control of a person in which sites are offered for the use of the
4 public or members of an organization, either free of charge or for
5 a fee, for the establishment of temporary living quarters for 5 or
6 more recreational units. Campground does not include a seasonal
7 mobile home park licensed under the mobile home commission act,
8 1987 PA 96, MCL 125.2301 to ~~125.2349~~.**125.2350.**



(b) "Department" means the department of ~~environmental~~
~~quality.~~**environment, Great Lakes, and energy.**

(c) "Local health department" means that term as defined under
 section 1105.

(d) **"Local unit of government" means that term as defined in
 section 3 of the Michigan planning enabling act, 2008 PA 33, MCL
 125.3803.**

(e) ~~(d)~~—"Mobile home" means a structure, transportable in 1 or
 more sections, which is built on a chassis and designed to be used
 as a dwelling with or without permanent foundation, when connected
 to the required utilities, and includes the plumbing, heating, air
 conditioning, and electrical systems contained in the structure.

(f) ~~(e)~~—"Person" means a person as defined in section 1106 or
 a governmental entity.

(g) ~~(f)~~—"Recreational unit" means a tent or vehicular-type
 structure, primarily designed as temporary living quarters for
 recreational, camping, or travel use, which either has its own
 motive power or is mounted on or drawn by another vehicle which is
 self-powered. A tent means a collapsible shelter of canvas or other
 fabric stretched and sustained by poles and used for camping
 outdoors. Recreational unit includes the following:

(i) A travel trailer, which is a vehicular portable structure,
 mounted on wheels, of such a size or weight as not to require
 special highway movement permits when drawn by a vehicle, primarily
 designed and constructed to provide temporary living quarters for
 recreational, camping, or travel use.

(ii) A camping trailer, which is a vehicular portable structure
 mounted on wheels and constructed with collapsible partial
 sidewalls of fabric, plastic, or other pliable material ~~which~~**that**



1 fold for towing by another vehicle and unfold at the campsite to
2 provide temporary living quarters for recreational, camping, or
3 travel use.

4 (iii) A motor home, which is a vehicular structure built on a
5 self-propelled motor vehicle chassis, primarily designed to provide
6 temporary living quarters for recreational, camping, or travel use.

7 (iv) A truck camper, which is a portable structure designed to
8 be loaded onto, or affixed to, the bed or chassis of a truck,
9 constructed to provide temporary living quarters for recreational,
10 camping, or travel use. Truck campers are of 2 basic types:

11 (A) A slide-in camper, which is a portable structure designed
12 to be loaded onto and unloaded from the bed of a pickup truck,
13 constructed to provide temporary living quarters for recreational,
14 camping, or travel use.

15 (B) A chassis-mount camper, which is a portable structure
16 designed to be affixed to a truck chassis, and constructed to
17 provide temporary living quarters for recreational, camping, or
18 travel use.

19 (v) A single sectional mobile home used only to provide
20 temporary living quarters for recreational, camping, or travel use.
21 Recreational unit does not include a mobile home used as a
22 permanent dwelling, residence, or living quarters.

23 (2) In addition, article 1 contains general definitions and
24 principles of construction applicable to all articles in this code.

25 **Sec. 12510a. An individual that occupies a campsite at a**
26 **campground is considered temporary for any duration if 1 of the**
27 **following applies:**

28 (a) **The individual resides in either of the following:**

29 (i) **A local unit of government in which, in the previous year,**



1 the governor has declared a state of emergency in that local unit
2 of government under the emergency management act, 1976 PA 390, MCL
3 30.401 to 30.421.

4 (ii) A portion of another state in which the governor of that
5 state has declared a state of emergency under that state's laws.

6 (b) The campground is located within 50 miles of a local unit
7 of government where 1 of the following applies:

8 (i) Within the previous year, the governor has declared a state
9 of emergency in that local unit of government under the emergency
10 management act, 1976 PA 390, MCL 30.401 to 30.421.

11 (ii) The local unit of government has adopted an ordinance or
12 resolution stating that there is a shortage of workers, including,
13 but not limited to, workers in the following industries in the
14 local unit of government:

15 (A) Health care.

16 (B) Agriculture.

17 (C) Construction.

18 (D) Utilities.

19 (E) Hospitality.

20 (F) Manufacturing.